

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

August 26, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	24CV451665	<i>Mamoun Abu-Samaha v. International Technological University, et al.</i>	Hearing: Order of Examination This Examination is OFF CALENDAR at the request of the moving party. SO ORDERED.
9:01 2	26CV485448	<i>Craig Rotbert v. Apele Builder, Inc., et al.</i>	Order on Motion by Defense counsel John W. Bussman of Absolute Law Group to be Relieved as Counsel for Defendant Apele Builder, Inc. Defense counsel John W. Bussman of Absolute Law Group moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendant Apele Builder, Inc. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Defendant and filed with this Motion. Moreover, as a corporation is <i>required</i> under California law to be represented by counsel in civil actions, Apele Builder is ORDERED to retain new counsel to represent it in this case within 30 days of today. And as his last task in this case, attorney Bussman must convey this ORDER to Apele Builder, Inc. today. SO ORDERED.
9:01 3			
9:01 4			
9:01 5			

9:00 <u>1</u>	25CV469523	<i>Sara Taghizadeh</i> <i>v.</i> <i>Nezhat Solimani, M.D., et al.</i>	Order on Defendant Solimani's Demurrer to Plaintiff's First Amended Complaint and Motion to Strike Portions of Plaintiff's First Amended Complaint See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.
9:00 <u>2</u>	25CV469523	<i>Sara Taghizadeh</i> <i>v.</i> <i>Nezhat Solimani, M.D., et al.</i>	Order on Defendant Solimani's Motion to Strike Portions of Plaintiff's First Amended Complaint See Line <u>1</u> below for complete tentative ruling on Defendant Solimani's Motion to Strike. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.
9:00 <u>3</u>	25CV481555	<i>Nicholas DiSalvo</i> <i>v.</i> <i>Nancy Bucknell</i>	Order on Defendant Bucknell's Demurrer to Plaintiff's Complaint See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 4	24CV447115	<i>American Express National Bank v. Timmy Tri, et al.</i>	Order on Plaintiff's Motion for Summary Judgment, or in the alternative for Summary Adjudication, in favor of Plaintiff and against Defendant <i>See</i> Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order on this Motion. Moreover, after the hearing, the Court will sign the [Proposed] Judgment that was prepared and filed by Plaintiff with this Motion. SO ORDERED.
--	-------------------	---	---

9:00 5	25CV472081	<i>Shaun Allen Laliberte, et al.</i> <i>v.</i> <i>F.S. Trucking Company, et al.</i>	Order on Plaintiff Laliberte’s Motion to deem Plaintiff’s Request for Admissions, Set One, Admitted by Defendant F.S. Trucking Company, Inc., and for Sanctions <i>See</i> Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order on this Motion. Moreover, regardless of whether any party contests this tentative ruling, counsel for all parties in this case are ORDERED TO APPEAR IN PERSON at this August 26, 2026 hearing to discuss with the Court how from this point forward in this case they all <i>will</i> follow the provisions of Santa Clara County Bar Association (“SCCBA”) Code of Professionalism, including but not limited to on Discovery (Section 10) and Motion Practice (Section 11) or else they <i>and</i> their clients will experience an array of sanctions imposed by the Undersigned Judge. <i>See</i> Standing Order of Santa Clara County Superior Court Re SCCBA Code of Professionalism (filed: March 28, 2023) (authorizing Judges to apply this Code of Professionalism to adjudicate discovery disputes). Lest there be the slighted doubt in their minds, their compliance with the SCCBA Code of Professionalism when practicing in this Department 16 is not aspirational but mandatory. SO ORDERED.
--	-------------------	--	---

9:00 6	25CV465609	<i>Wells Fargo Bank, N.A.</i> <i>v.</i> <i>Yvonne Trigos</i>	Order on Plaintiff Wells Fargo Bank's Motion to deem Plaintiff's Request for Admissions, Set One, Admitted by Defendant See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV477349	<i>Lal Rai</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Defendant Hoblit Motors Ford's Motion to Compel Arbitration and Stay Action See Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 8	23CV424421	<i>City of Santa Clara</i> <i>v.</i> <i>Bogard Construction, Inc., et al.</i>	Order on Lexington Insurance Company's Motion for Leave to File Complaint-In-Intervention At the request of the moving party, this Motion is OFF CALENDER . SO ORDERED.
9:00 9	24CV453662	<i>Santos Medina</i> <i>v.</i> <i>SF Green Construction Inc., et al.</i>	Order on Plaintiff Medina's Motion to Vacate the June 4, 2025 Order Compelling Arbitration of claims against Defendant Solar Mosaic LLC. See Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 10			

9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Sara Taghizadeh v. Nezhat Solimani, M.D., et al.*

Case No.: 25CV469523

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Nezhat Solimani, M.D. (“Defendant”) demurs under Code of Civil Procedure Sections 430.10 and 430.30 to Plaintiff’s First Amended Complaint (“FAC”) on the grounds that the pleading does not state facts sufficient to constitute a cause of action for Fraud (Intentional Misrepresentation). Notice of Demurrer (the “Demurrer”) at 2:4-9 (filed: Jan. 12, 2026).

Defendant also moves under Code of Civil Procedure Sections 431.10(b), 435, 436, and 425.10 and Evidence Code Sections 210, 350, 351, 400-406, 410, 702, 800, 802, 1200 and 1400-1401 to strike the following portions of the FAC:

1. Pg. 3:9-10 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
2. Pg. 3:25-26 (See Declaration of Khatereh Taghizadeh, Exhibit B”
3. Pg. 4:6-7 (“See Declaration of Sara Taghizadeh, Exhibit A; Declaration of Zain Jaffer, Exhibit C”);
4. Pg. 4:12-13 (“See Declaration of Zain Jaffer, Exhibit C, attached Exhibit 1”)
5. Pg. 5:2-3 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
6. Pg. 5:8-9 (“See Declaration of Sara Taghizadeh, Exhibit A, with attached Exhibits 1-3”)
7. Pg. 8:11 (“See Exhibit D”)
8. Exhibit A (The entirety of the “Declaration of Sara Taghizadeh” (Pgs. 1-3 and Exhibits 1-3 attached thereto)
9. Exhibit B (The entirety of the “Declaration of Khatereh Taghizadeh” (Pgs. 1-2);
10. Exhibit C (The entirety of the “Declaration of Zain Jaffer” (Pgs. 1-2 and Exhibit 1 attached thereto)
11. Exhibit D (The entirety of Exhibit D)

Notice of Motion to Strike (the “Motion to Strike”) at 2:4-24 (filed: Jan. 12, 2026).

The Demurrer and Motion to Strike came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

Plaintiff received prenatal care from Dr. Solimani from December 2023 through February 2025. On September 26, 2024, Plaintiff experienced vaginal bleeding and sharp abdominal cramps and sought emergency room treatment. Plaintiff forwarded the emergency room records to Dr. Solimani and described her symptoms; the following day Dr. Solimani advised her via MyChart message to avoid physical activity and sex until bleeding stopped and to stay hydrated. (FAC ¶¶ 6-9)

Despite multiple follow-up messages from Plaintiff, Dr. Solimani did not respond further and did not arrange follow-up care until the next scheduled appointment on October 23, 2024. At that visit, Dr. Solimani allegedly failed to acknowledge or document the prior threatened miscarriage. (FAC ¶¶ 10-11)

On January 16, 2025, Plaintiff, accompanied by her sister, reported lack of visible fetal movement to Dr. Solimani, who attributed the concern to an anterior placenta but did not order a non-stress test, biophysical profile, or ultrasound. (FAC ¶ 12)

On February 14, 2025, Plaintiff and her husband again reported markedly decreased fetal movement, stating the baby “was not moving much,” but Dr. Solimani again did not order or recommend emergency diagnostic testing. (FAC ¶ 13)

During her prenatal care, Plaintiff reviewed periodic summaries of her prenatal chart and was verbally informed by Dr. Solimani that all was normal and that fundal growth was consistent with gestational age. Plaintiff believed the accuracy of her medical chart entries and Dr. Solimani’s verbal reassurances and therefore did not question the entries or seek further diagnostic evaluation. (FAC ¶¶ 15-16)

On February 16, 2025, Plaintiff was informed at Sequoia Hospital that her baby had no heartbeat. A post-stillbirth review of Plaintiff’s medical records revealed that certain fundal-height measurements matched gestational weeks despite no actual measurement having been taken, and that records falsely documented that prenatal education had been provided. (FAC ¶¶ 17, 20)

Plaintiff filed this action on June 27, 2025, and amended her complaint on December 2, 2025, alleging causes of action for (1) medical malpractice, and (2) fraud – intentional misrepresentation.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to

object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Id.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Id.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Id.*) “A demurrer must dispose of an entire cause of action to be sustained.” (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Analysis of the Demurrer

Dr. Solimani raises two principal issues: (1) the fraud allegations lack the particularity required under California law, and (2) the FAC constitutes a sham pleading because it allegedly contradicts the original complaint’s admission that Plaintiff did not review her medical records until after the stillbirth.

A. The Fraud Allegations Are Pleaded With Specificity

The elements of fraud (intentional misrepresentation) are: (1) misrepresentation; (2) knowledge of falsity (scienter); (3) intent to defraud or induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Cansino v. Bank of America*, (2014) 224 Cal. App. 4th 1462, 1469.) In California, fraud must be pleaded specifically; general and conclusory

allegations do not suffice. The particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Less specificity may be required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (*Cansino, supra*, 224 Cal. App. 4th at 1469) However, this relaxation is narrow and does not eliminate the plaintiff's burden to plead the elements with particularity. (*Thrifty Payless, Inc. v. The Americana at Brand, LLC*, (2013) 218 Cal. App. 4th 1230, 1239.)

Here, the FAC identifies Dr. Solimani as the person who made the alleged misrepresentations and specifies that the misrepresentations consisted of fundal-height measurements recorded as though actual measurements had been performed (including entries matching Plaintiff's gestational weeks) and notations stating that prenatal education was provided when no such instruction occurred. The FAC alleges these misrepresentations were made during Plaintiff's prenatal care, including encounters on January 16, 2025, and February 14, 2025. The FAC further alleges the misrepresentations were made by entries in Plaintiff's medical records, which Plaintiff reviewed during her pregnancy and upon which she relied in believing her pregnancy was progressing normally. (FAC ¶¶ 12-18, 47-51) These allegations sufficiently establish the elements of fraud.

However, Dr. Solimani contends these allegations are insufficient because the FAC (1) alleges the fraud occurred when Plaintiff relied on verbal assurances from her, (2) fails to state facts establishing the content of her verbal assurances, and (3) fails to state facts showing the misrepresentations in Plaintiff's medical records were made with intent to deceive. (Demurrer at 4: 17-24) The Court is not persuaded.

Plaintiff alleges that Dr. Solimani's deliberate falsification of her medical records is the basis of her fraud cause of action and not Dr. Solimani's verbal reassurances. Plaintiff further alleges that the misrepresentations in her medical record were made with the knowledge of their falsity and with the intent to mislead Plaintiff, conceal substandard medical care, and avoid liability for negligent prenatal management. A post-stillbirth review of Plaintiff's medical records confirmed and revealed the extent of Dr. Solimani's fabricated documentation, which included "fundal height measurements that matched gestational weeks without actual measurement, reflecting a deliberate misrepresentation of clinical findings." (FAC ¶¶ 17, 47, 48, 51)

The FAC's fact allegations create a pattern from which the Court can reasonably infer Dr. Solimani's knowledge of the falsity of her medical entries and her intent to induce Plaintiff's reliance on those medical entries. So after carefully reviewing the fact allegations of the FAC, applying the pleading standards of California law including its exception for facts within Dr. Solimani's knowledge, and in the broad exercise of its discretion, the Court finds that the FAC's fact allegations are pleaded with sufficient specificity to defeat this Demurrer.

Accordingly, Dr. Solimani's Demurrer on this ground is **OVERRULED**.

B. The FAC is not a Sham Pleading

Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers. (*Larson v. UHS of Rancho Springs, Inc.*, (2014) 230 Cal. App. 4th 336, 343.) If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations. Allegations in the original pleading that rendered it vulnerable to demurrer cannot simply be omitted without explanation in the amended pleading; the policy against sham pleadings requires the pleader to explain satisfactorily any such omission. (*Id.* at 343-344.)

Dr. Solimani contends the FAC is a sham pleading because it attempts to circumvent the original complaint's admission that Plaintiff did not review her medical records until after the stillbirth. Dr. Solimani emphasizes that Plaintiff's original allegation constitutes a conclusive admission that she had no knowledge of the alleged fabrication until after the stillbirth and thus could not have relied on them during her pregnancy. (Demurrer at 5:7-7:16)

The original Complaint alleged: "[a]fter the stillbirth, a review of Plaintiff's medical records revealed that Defendant Solimani fabricated multiple aspects of Plaintiff's prenatal documentation." (Complaint ¶ 15; Opposition at 11:19-21) The FAC alleges that "during her prenatal care period, Plaintiff reviewed periodic summaries of her prenatal chart and was verbally informed by Dr. Solimani that all is normal and that fundal growth was consistent with gestational age," and that Plaintiff "reasonably believed the chart entries and verbal reassurances to be accurate" and therefore did not question the measurements or seek further evaluation. The FAC further alleges that the post-stillbirth review "revealed the full extent of the misrepresentations that had already influenced Plaintiff's decisions and medical care during pregnancy." (FAC ¶¶ 15-17, 49)

The FAC does not allege the logical opposite of the original complaint's allegations. The original complaint alleged post-stillbirth discovery of fabrication and pre-stillbirth reliance on the records; the FAC alleges the same, adding detail that Plaintiff reviewed periodic summaries of her chart during pregnancy and that the post-stillbirth review revealed the full extent of misrepresentations that had already influenced her decisions. This language is consistent with the theory that Plaintiff accessed chart information during pregnancy (supporting reliance) but did not discover the alleged falsifications until the comprehensive post-stillbirth review. The FAC clarifies how Plaintiff accessed the records (periodic summaries and verbal reassurances), rather than contradicting the timing of discovery.

So after carefully reviewing the fact allegations of the FAC and the record, applying California law on the sham pleading doctrine, and in the broad exercise of its discretion,

the Court finds that the FAC is not a sham pleading.

Accordingly, Dr. Solimani's demurrer on this ground is **OVERRULED**.

IV. Analysis of the Motion to Strike

Dr. Solimani seeks to strike all references to and the entirety of Exhibits A through D attached to the FAC, which consist of verified declarations from Plaintiff, her sister, and her husband, along with supporting documents including medical records and an online provider profile. Dr. Solimani's primary arguments are that these exhibits contain inadmissible hearsay, inadmissible opinion, assume facts not in evidence, lack foundation, lack authentication, lack relevance, and are based on speculation. (Motion at 3:20-5:3)

Code of Civil Procedure section 437 imposes a threshold requirement: "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code. Civ. Proc. § 437(a).) This statutory language is mandatory. It limits the Court's power to matters discernible from the pleading itself or from judicially noticeable facts, not from anticipated evidentiary challenges that will arise at a later stage.

California law permits a party to attach an exhibit to a complaint and incorporate it by reference; once incorporated, the exhibit becomes part of the pleading for all purposes, including demurrer and motion to strike. The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference; facts in the exhibits take precedence over contrary allegations in the body of the complaint. (*Moran v. Prime Healthcare Mgmt., Inc.* (2016) 3 Cal. App. 5th 1131, 1145-1146; *Stella v. Asset Mgmt. Consultants, Inc.* (2017) 8 Cal. App. 5th 181, 193-194)

Here, nothing on the face of the FAC or its attached verified declarations discloses that Plaintiff, her sister, or her husband lack personal knowledge of the matters to which they attest. Each declaration is made under penalty of perjury and purports to be based on the declarant's personal knowledge. Plaintiff's declaration attests to her own prenatal care, the brevity of her appointments, her review of her medical records, and her reliance on Dr. Solimani's reassurances. Her sister's declaration attests to matters she personally observed while accompanying Plaintiff to the January 16, 2025, appointment. Plaintiff's husband's declaration attests to matters he personally observed at the February 14, 2025, appointment and to his receipt of Dr. Solimani's online response.

Whether these declarants will ultimately be able to lay a proper foundation for the admissibility of their testimony at trial, including whether certain statements constitute inadmissible hearsay, or whether medical record excerpts will require custodian authentication at trial are questions that cannot be resolved from the face of the FAC. They depend on factual determinations—what the witness personally perceived, whether an out-of-court statement is offered for its truth, whether a business records exception applies—that are not apparent from reading the verified declarations themselves.

Dr. Solimani cites *Hayman v. Block* (1986) 176 Cal.App.3d 629, and *Keniston v. American National Ins. Co.* (1973) 31 Cal.App.3d 803, for the proposition that declarations must show personal knowledge, competency, and freedom from hearsay. Her reliance on these cases is misplaced since both arose in the summary judgment context, where declarations are submitted as evidence to determine whether a triable issue of fact exists under Code of Civil Procedure section 437c. Neither decision holds that a declaration attached to a complaint must independently satisfy evidentiary requirements applicable to summary judgment evidence, or that alleged evidentiary deficiencies render an otherwise adequately pleaded cause of action subject to a motion to strike.

The distinction matters. At the pleading stage, the court does not weigh evidence or resolve evidentiary objections. It assumes the truth of properly pleaded factual allegations and determines whether those allegations, if proven, would entitle the plaintiff to relief. Dr. Solimani's motion asks the Court to do what section 437 forbids: to look beyond the face of the pleading and prematurely adjudicate evidentiary admissibility questions now that are properly adjudicated at trial or summary judgment.

VI. Conclusion & Order

Dr. Solimani's Demurrer to the FAC's second cause of action for fraud is **OVERRULED**.

Dr. Solimani's Motion to Strike portions of the FAC is **DENIED**.

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 2

Case Name: *Sara Taghizadeh v. Nezhat Solimani, M.D., et al.*

Case No.: 25CV469523

See Line 1 above for complete tentative ruling on Defendant Solimani's Motion to Strike. After the hearing, the Court will prepare and file one formal Order on Defendant Solimani's Demurrer and Motion to Strike.

Line 3

Case Name: *Nicholas DiSalvo v. Nancy Bucknell*

Case No.: 25CV481555

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Nancy Bucknell (“Defendant”) demurs under Code of Civil Procedure Sections 430.10 *et seq.* to Plaintiff’s Complaint on the grounds that it fails to state facts sufficient to constitute his causes of action for (1) legal malpractice; (2) breach of fiduciary duty; and (3) intentional infliction of emotional distress. Notice of Demurrer (the “Demurrer”) at 1:22-2:2 (filed: Jan. 14, 2026).

The Demurrer came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Defendant Nancy Bucknell (“Defendant”) demurs under Code of Civil Procedure Sections 430.10 *et seq.* to Plaintiff’s Complaint on the grounds that it fails to state facts sufficient to constitute his causes of action for (1) legal malpractice; (2) breach of fiduciary duty; and (3) intentional infliction of emotional distress. Notice of Demurrer (the “Demurrer”) at 1:22-2:2 (filed: Jan. 14, 2026).

The Demurrer came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the fact allegations of the Complaint, Defendant Nancy Bucknell represented Plaintiff in two separate domestic violence criminal matters in Santa Clara County Superior Court from 2021 to 2025, case numbers C2406224 and C2412653. (Complaint at 2:11-13)

During the representation, Defendant referred Plaintiff to Danis Bucknell, Defendant’s cousin-in-law, for services as a “life coach” without disclosing their familial relationship. From 2023 to 2025, Plaintiff paid the life coach Danis Bucknell “for therapeutic help and received terror” by being told “horrific secrets about Defendant” Nancy Bucknell while “simultaneously extracting Plaintiff’s own trauma.” (Complaint at 2:14-18)

During Plaintiff’s interactions with Defendant, she allegedly made racist and sexually inappropriate comments, repeatedly ignored communications, habitually

interrupted plaintiff, spoke over him, and spoke to him in a condescending and belittling tone. (Complaint at 2: 22-28)

In July 2025, Defendant allegedly sabotaged plaintiff's plea deal, forcing Plaintiff to accept a misdemeanor battery conviction he was never supposed to take. Plaintiff subsequently retained Attorney Stephanie Rickard, who corrected the plea. During this time, Defendant became aware of Plaintiff's familiarity with aspects of her personal life and subsequently sent a scathing email to her cousin, Danis Bucknell's spouse, disclosing confidential information about Plaintiff. (Complaint at 2:19-21, 24-26, 3:3-6)

After the resolution of the criminal cases, Defendant refused to return Plaintiff's complete client file despite four written demands. (Complaint at 3: 6-7)

Plaintiff initiated this action by filing his Complaint on December 10, 2025, asserting causes of action for (1) legal malpractice, (2) breach of fiduciary duty, and (3) intentional infliction of emotional distress.

II. Legal Standard on Demurrer

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid.*) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts "construe the complaint 'liberally ... with a view to substantial justice between the parties[.]'" (*Ibid.*) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are

granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Under California law, even if a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Request for Judicial Notice by Defendant

Defendant requests judicial notice of the following documents:

Exhibit A - *People v. DiSalvo, Nicholas*, Santa Clara County Superior Court, Case No.: C2406224, sentencing minute order entered on July 16, 2025.

Exhibit B - *People v. DiSalvo, Nicholas*, Santa Clara County Superior Court, Case No.: C2412653, sentencing minute order entered on October 1, 2025.

Defendant’s request is **GRANTED, IN PART**. The existence of these documents may be judicially noticed pursuant to Evid. Code § 452(d). While the Court can and does here take judicial notice of the truth of facts asserted in these documents such as orders, Judgments, findings of fact and conclusions of law, it cannot and does not take judicial notice of any contained hearsay statements. (See, *Ramsden v. Western Union* (1977) 71 Cal.App.3d 873, 879.)

IV. Analysis of the Demurrer

As an initial matter, the Court notes with disapproval Plaintiff’s failure to cite any legal authorities in support of his opposition. California Rules of Court, Rule 3.1113 requires a memorandum that “contain[s] a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (California Rules of Court, Rule 3.1113(b); emphasis added.). Therefore, a party’s failure to provide a memorandum as required by the Rule may be considered an “admission that the [opposition] is without merit and cause for its denial.” (Cal. Rules of Court, Rule 3.1113(a), (b); *In re Marriage of Falcone & Fyke* (2012) 203 Cal.App.4th 964, 976.)

Nonetheless, under the strong policy of California law to resolve matters on their merits, the Court now addresses the merits of Defendant’s Demurrer and Plaintiff’s Opposition.

**A. The First Cause of Action for Legal Malpractice is
Deficiently Pleaded**

To state a cause of action for legal malpractice, a plaintiff must allege (1) the duty of the defendant attorney to use such skill, prudence, and diligence as members of the profession commonly possess and exercise; (2) a breach of that duty; (3) a resulting injury proximately caused by the breach; and (4) actual loss or damage. In an action for legal malpractice by a criminal defendant against his/her defense attorney, the criminal defendant must prove his/her *actual innocence* of the criminal charges as a necessary element of the action. (*Wiley v. County of San Diego* (1998) 19 Cal.4th 532, 536-537, 545; *Coscia v. McKenna & Cuneo* (2001) 25 Cal.4th 1194, 1200.)

“Public policy considerations require that only an innocent person wrongly convicted be deemed to have suffered a legally compensable harm. Unless a person convicted of a criminal offense is successful in obtaining postconviction relief, the policies reviewed in *Wiley* preclude recovery in a legal malpractice action.” (*Coscia, supra*, 25 Cal.4th at p. 1201.) This requirement applies regardless of whether the conviction resulted from guilty or nolo contendere pleas or trial. (*Id.* at p. 1205.)

Here, the judicially-noticed court records establish that Plaintiff entered pleas of no contest to criminal charges in two separate cases. On July 16, 2025, Plaintiff entered a no contest plea to violating Penal Code section 166(c)(1) in case number C2406224. On October 1, 2025, Plaintiff entered a no contest plea to violations of Penal Code sections 243(e)(1) and 166(c)(1) in case number C2412653. Both minute orders reflect that judgment was entered, sentencing occurred, and probation was granted.

The Complaint does not allege that Plaintiff is actually innocent of these charges. Instead, the Complaint alleges that Defendant sabotaged the plea deal by forcing Plaintiff to accept convictions. A successor attorney corrected the plea, thereby allegedly saving Plaintiff from the sabotage. (Complaint at 2:19-25) These allegations go to whether Plaintiff received a favorable plea bargain, *not* to whether Plaintiff committed the underlying offenses. The fact that the successor counsel subsequently “corrected the plea” does not establish innocence; it suggests only that a different resolution was negotiated. Hence, the Complaint’s focus on the negotiated outcome rather than factual innocence is fatal to the malpractice claim under *Wiley*.

In opposition, Plaintiff argues that the claims arise from Defendant’s conduct outside the criminal judgment itself, including billing misconduct, conflicts of interest, and abandonment. However, Plaintiff’s Opposition fails for two independent reasons:

1. Plaintiff has not opposed Defendant’s argument on lack of innocence, nor has he submitted any argument on this issue in his opposition. Failure to address an issue in the memorandum may be construed as a concession on the merits of that issue. (California Rules of Court Rule 3.1113(a); See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [failure to oppose issue raised in demurrer deemed abandonment of the issue].)

2. Plaintiff's first cause of action specifically alleges malpractice in connection with the criminal representation and plea negotiations; not in connection with billing misconduct and/or abandonment. To the extent Plaintiff suffered harm from an unfavorable criminal outcome, that harm is attributable to the antecedent criminality established by the no contest pleas absent an allegation of actual innocence. Plaintiff has neither alleged nor established postconviction relief in the underlying criminal cases. As actual innocence is an element of this cause of action, and the Complaint fails to plead facts showing Plaintiff's actual innocence, this cause of action is deficiently pleaded because it does not plead facts sufficient to constitute this cause of action.

Accordingly, Defendant's Demurrer to the First Cause of Action for Legal Malpractice is **SUSTAINED** under Code of Civil Procedure Section 430.10(e) for its failure to plead facts sufficient to constitute this cause of action.

However, while this cause of action is deficiently pleaded, the Complaint does not show on its face that it is *incapable* of amendment; it is conceivable that Plaintiff might be able to cure the pleading deficiencies identified above in a First Amended Complaint. Accordingly, under the liberal amendment standards of *McDonald, supra*, 180 Cal. App. 3d at 303-304, *supra*, the Court **SUSTAINS** the demurrer to Plaintiff's First Cause of Action but gives Plaintiff **LEAVE TO AMEND** to file a First Amended Complaint **within 10 days of today** to try to cure the pleading deficiencies identified in this Order if he can do so truthfully.

B. The Second Cause of Action for Breach of Fiduciary Duty is Sufficiently Pleaded.

To plead a cause of action for breach of fiduciary duty, a plaintiff must allege facts showing the existence of a fiduciary duty owed to that plaintiff, a breach of that duty and resulting damage. (*Pellegrini v. Weiss* (2008) 165 Cal.App.4th 515, 524.) A fiduciary duty is founded upon a special relationship imposed by law or under circumstances in which "confidence is reposed by persons in the integrity of others" who voluntarily accept the confidence. (*Tri-Growth Centre City, Ltd. v. Silldorf, Burdman, Duignan & Eisenberg* (1989) 216 Cal.App.3d 1139, 1150.) "[A] breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence." (*Stanley v. Richmond* (1995), 35 Cal.App.4th 1070, 1086.)

There is no dispute Defendant owed Plaintiff a fiduciary duty stemming from their attorney-client relationship. The disputed issue is whether Defendant breached this duty. The Complaint alleges several distinct breaches of fiduciary duty:

- Defendant referring Plaintiff to Danis Bucknell for life coaching services without disclosing that Danis was Defendant's cousin-in-law, despite their shared surname. This allegation by itself may constitute a breach of the duty of loyalty by creating an undisclosed conflict of interest or business relationship. (Complaint at 2:14-18)

- Defendant violating attorney-client confidentiality by sending an email “containing plaintiff’s confidential information” to Danis Bucknell’s husband (Defendant’s cousin) after learning that Ms. Bucknell had disclosed family secrets to Plaintiff. The Complaint states that this occurred in July 2025, immediately after which Ms. Bucknell sent frantic texts to Plaintiff expressing fear that the disclosure would “ruin my family” and cause her husband to “hate me.” This allegation by itself may constitute a breach of the duty of confidentiality owed to a client. (Complaint 3:3-6)
- Defendant repeatedly ignoring communications and refusal to return the complete client file despite four written demands. The failure to communicate and the refusal to return client property may constitute breaches of the duties of communication and diligence. (Complaint at 2:26, 3:6-7.)

These fact allegations, which California law requires this Court to deem to be true for purposes of resolving this Demurrer, establish a pattern of conduct that collectively supports a claim for breach of fiduciary duty. However, Defendant argues that these allegations are insufficient to state a cause of action since Plaintiff fails to establish any resulting damages. (Demurrer at 4:21-22) The Court respectfully disagrees.

Plaintiff alleges that he “remains in therapy specifically for the terror, betrayal, and emotional harm inflicted” by Defendant and Danis Bucknell. (Complaint at 3:8-9) Accepting the Complaint’s allegations as true, as the Court must for purposes of resolving this Demurrer, Plaintiff’s allegation sufficiently satisfies the causation element to defeat the demurrer. Defendant’s argument that the therapy costs can be attributed to domestic violence trauma and not her misconduct (Demurrer at 5:21-24), presents a dispute of fact cannot be resolved on Demurrer. To be sure, it’s quite possible that on summary judgment or at trial Defendant will win on this issue. But not today at the pleading stage in the context of this Demurrer.

Therefore, Defendant’s demurrer to Plaintiff’s Second Cause of Action for Breach of Fiduciary Duty is **OVERRULED**.

C. The Third Cause of Action for Intentional Infliction of Emotional Distress (IIED) is Sufficiently Pleaded.

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by defendant; (2) defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by defendant’s outrageous conduct. (*Yau v. Allen*, 229 Cal. App. 4th 144, 160-161.)

“Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Bock v. Hansen*, 225 Cal. App. 4th 215, 233; internal citations and quotes omitted)

“Conduct, to be ‘outrageous’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. In order to avoid a demurrer, the plaintiff must allege with ‘great [] specificity’ the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832; internal citations and quotes omitted.) The tort does not extend to “mere insults, indignities, *threats*, annoyances, petty oppressions, or other trivialities.” (*Cochran v. Cochran*, (1998) 65 Cal. App. 4th 488, 496.)

Defendant argues that the alleged conduct—interrupting Plaintiff, speaking in a condescending tone, and making inappropriate comments—does not rise to the level of extreme and outrageous conduct required for IIED. Defendant further contends that Plaintiff fails to allege severe emotional distress specifically resulting from Defendant’s conduct, as opposed to distress from the domestic violence proceedings or interactions with Danis Bucknell.

While the Complaint does not allege isolated instances of rudeness, it *alleges* a sustained pattern of conduct over multiple years including: (1) creating an undisclosed conflict of interest by referring Plaintiff to a family member; (2) habitual belittling and mockery causing Plaintiff to leave “in tears” after ninety percent of contacts; (3) deliberately sabotaging a plea agreement; (4) ambushing and mocking Plaintiff in front of witnesses while refusing to provide a remedy; (5) breaching client confidentiality by sharing information with family members; and (6) refusing to return client property. As to severe emotional distress, the complaint alleges that Plaintiff “remains in therapy specifically for the terror, betrayal, and emotional harm inflicted” by Defendant and Danis Bucknell, and that Plaintiff “paid for therapeutic help and received terror.” (Complaint pp. 2-3)

The Complaint’s allegations, taken as true, describe conduct beyond mere insults, indignities, or petty oppressions. The combination of professional misconduct, breach of trust, sabotage of legal proceedings affecting custody and liberty interests, and deliberate infliction of emotional harm while Plaintiff was vulnerable satisfy the pleading requirements. Whether the combined conduct actually constitutes extreme and outrageous behavior and whether Plaintiff can prove severe emotional distress specifically caused by Defendant’s actions are disputes of fact that cannot be resolved at the pleading stage in the context of this Demurrer.

Therefore, Defendant’s Demurrer to the Third Cause of Action for Intentional Infliction of Emotional Distress is **OVERRULED**.¹

¹ Lest there be any doubt or confusion, the Court underscores that in making these rulings at the pleading stage in the context of this Demurrer, the Court is *not* making any findings of fact that any of the allegations in Plaintiff’s Complaint are true. Defendant is free to challenge any and all of them during the summary judgment stage and at trial. And Plaintiff is **forbidden** to cite any part of this Order as evidence that any of the allegations of his Complaint are true.

V. Conclusion & Order

For the reasons explained above:

- Defendant's Demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND** within 10 days of today.
- Defendant's Demurrer to the Second and Third Causes of Action is **OVERRULED**.

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *American Express National Bank v. Timmy Tri, et al.*

Case No.: 24CV447115

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff American Express National Bank (“Plaintiff”) moves under Section 437c of the Code of Civil Procedure for summary judgment in favor of Plaintiff and against Defendant Timmy Tri (“Defendant”) on the grounds that Defendant has no defense to the Complaint filed by Plaintiff. Notice of Motion (the “Motion”) at 1:23-2:1 (filed: Dec. 18, 2025). In the alternative, Plaintiff moves for Summary Adjudication in favor of Plaintiff and against Defendant on the First Cause of Action for Breach of Contract as evidenced by the Cardmember Agreement and billing statements kept by Plaintiff that constitute the principal record of transactions between Plaintiff and Defendant relative to Defendant’s credit card account. *Id.* at 2:7-10.

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The evidence is undisputed that:

- a binding contract exists between these parties evidenced by the issuance of a credit card account by Plaintiff to Defendant,
- Defendant used this credit card to purchase items, and
- Defendant breached this contract by failing to pay Plaintiff for amounts that Defendant charged on this credit card.

Specifically, the following facts and evidence submitted by Plaintiff are undisputed:

1. Defendant applied to Plaintiff for a credit card account and entered into a written credit card account agreement with Plaintiff for the account number ending in 3003 (the “Account”). Pl. Declaration in Support of Motion (“Pl. Decl.”) at ¶¶ 7, 9 & Ex. A thereto.
2. Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement when the Defendant applied for, received or used the credit card account. In addition, the Cardmember Agreement provides that use

of the card constitutes acceptance of the agreement. Pl. Decl. at ¶ 4, 7 & Exs. A, B, and C.

3. After receiving the credit card, Defendant made purchases using the credit card; the principal balance of \$7,834.88 results and exists now from Defendant's use of this account. Pl. Decl. at ¶¶11, 15 & Ex. A, B, C, and D.
4. Defendant defaulted by not making payments due under the terms of the Cardmember Agreement; so Plaintiff accelerated the account balance so that the entire unpaid balance became immediately due and payable. Pl. Decl. at P¶15 & Ex. A, B, and C.
5. Defendant owes Plaintiff the principal sum of \$7,834.88, plus court costs in the amount of \$797.61, for a total amount owed to Plaintiff now of \$8,632.49. Pl. Decl. at ¶ 15 & Ex. B and C.

Defendant has submitted no evidence whatever disputing any of those facts.

Defendant does not even *argue* otherwise.

Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Accordingly, the Plaintiff's Motion for Summary Judgment in favor of Plaintiff and against Defendant is **GRANTED** in its entirety. Specifically, the Court **ORDERS** that Plaintiff American Express National shall recover now from Defendant Timmy Tri the principal sum of \$7,834.88, plus court costs in the amount of \$797.61, for a total judgment in the sum of \$8,632.49.²

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

² Today the Court will also sign, date, and file the separate [proposed] "Judgment Pursuant to Motion for Summary Judgment" that was filed by Plaintiff with this Motion.

Line 5

Case Name: *Shaun Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Shaun Allen Laliberte (“Plaintiff”) moves under Code of Civil Procedure Sections 2023.010 *et seq.*, 2033.010 *et seq.*, 2023.030 *et seq.*, and 2033.280 *et seq.* to deem Plaintiff’s Requests for Admissions, Set One (the “RFAs”) admitted by Defendant F.S. Trucking Company, Inc., and for sanctions for Plaintiff’s reasonable attorneys’ fees and costs for this Motion to be imposed in the amount of \$2,000.00 against Defendant F.S. Trucking Company, Inc. Notice of Motion (the “Motion”) at 2:4-16 (filed: Feb. 19, 2026). In the alternative to a ruling that Defendant has admitted the RFAs, Plaintiff requests a ruling that because Defendant failed to serve a timely responses to these RFAs Defendant has waived any objections to these RFAs. Motion at 5:1-8

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Chronology

Plaintiff served the Requests for Admissions, Set One, on Defendant F.S. Trucking Company, Inc., on November 25, 2025. Declaration of attorney Anahi Gonzalez In Support of Motion (“Gonzalez Decl.”) at ¶ 5 & Exhibit A thereto.

Defendant’s responses were due on December 29, 2025. Gonzales Decl. ¶ 6. This timing point is important here: under Code of Civil Procedure Section 2033.250, “[w]ithin 30 days after serve of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requested party[.]” C.C.P. § 2033.250(a). So here if Defendant failed to serve a response to these RFAs by December 29, 2025, then Defendant would have failed to serve a *timely* response to these RFAs.

Plaintiff filed this Motion on February 19, 2026. Plaintiff asserts that as February 19, 2026 when Plaintiff filed this motion that Defendant F.S. Trucking Company, Inc., did not respond to these RFAs despite its obligation to respond under Code of Civil Procedure Section 2033.240. Gonzalez Decl. at ¶ 7.

Because Defendant failed to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Motion at 3:21-4:24.

In the alternative, Plaintiff requests an Order that because Defendant has failed to serve a timely response to these RFAs, Defendant has waived all objections to these RFAs. Motion at 5:1-8.

Moreover, for Plaintiff's misuse of the discovery process under Code of Civil Procedure Section 2023.010(d) by failing to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves for a monetary sanction against Defendant F.S. Trucking Company, Inc., of \$2,000.00 under Code of Civil Procedure Sections 2023.030 for Plaintiff's reasonable attorneys' fees and costs for bringing this Motion. C.C.P. § 2023.030. Motion at 6:11-24.

In its Opposition brief, Defendant F.S. Trucking Company, Inc., asks the Court to deny the Motion as "moot" because Defendant F.S. Trucking Company, Inc., asserts that it did serve a verified responses to these RFA *on February 6, 2026*. Opposition at 2:22-4:3 & Declaration of attorney Chandrani Mandal in support of Opposition ("Mandal Decl.") at ¶ 6 ("Verified discovery responses were served on February 6, 2026 via electronic service.").

In its Reply brief, Plaintiff asserts that "Defendant is lying and falsely claiming that it served discovery responses on February 6, 2026." Reply at 2:6-7. In support of Plaintiff's position that it is factually incorrect that Defendant served verified responses to the RFAs on February 6, 2026, Plaintiff argues that the following points undermine Defendant's position that Defendant served verified responses on February 6, 2026:

- On February 10, 2026, four days after the date Defendant now claims it served it responses, Defendant emailed Plaintiff's counsel requesting an extension of time to serve its discovery response. Reply at 2:23-24; Supp. Gonzalez Decl. at ¶ 5.
- Plaintiff asserts that upon downloading the responses claimed by Defendant to have been sent in a February 6, 2026 email, "the metadata shows that the documents were created on February 23, 2026, and modified on August 19, 2026" (Reply at 6:4-6 & Supplemental Gonzalez Decl. at ¶ 15)—and August 19, 2026 is the same date that "defense counsel 'forwarded' an email that defense counsel represented as the February 6, 2026 email serving discovery responses." Reply 3:22-23; Supp. Gonzalez Decl. at ¶ 4.

Carefully reviewing the exhibits to the Plaintiff's Reply brief, the Court sees that on August 17, 2026 shortly after Plaintiff's counsel reviewed Defendant's Opposition brief, Plaintiff counsel wrote an email to Defense counsel stating that Plaintiff's counsel "do[es] not have any record of receiving . . . your client's discovery responses on February 6, 2026[.] Please send us the emails reflecting service of the discovery responses[.]" Supp. Gonzalez Decl., Ex. 4. To which Defense counsel replied on August 19, 2026 by forwarding an email from Defense counsel dated February 6, 2026 attaching Defendant's discovery responses to the RFAs. Supp. Gonzalez Decl., Ex. 6. It is that February 6, 2026 email that Plaintiff's counsel now says is "fabricated." Reply at 3:24.

II. Governing Law

In this Motion brought under Code of Civil Procedure Section 2033.280, the Court finds that plain statutory text of Section 2033.280 to be controlling (and quite helpful) to decide this Motion. Section 2033.280 provides, in pertinent part:

“If a party to whom requests for admission are directed *fails to serve a timely response*, the following rules apply

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product. . . . The Court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:
 - 1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.
 - 2) The parties failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.³
- (b) The requesting party may move for *an order* that . . . the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make *this order*, *unless* it finds that the party to whom the requests for admission have been directed has been served, *before the hearing on the motion*, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. [But] [i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose *failure to serve a timely response* to requests for admission necessitated this motion.

C.C.P. § 2033.280 (emphasis added).

In light of the plain text of Section 2033.280(c), even if Defendant here served its responses by February 6, 2026, the Court retains authority and indeed “it is mandatory” for the Court to impose a reasonable sanction against Defendant here if the Court finds that Defendant “fail[ed]” to serve a timely response” to these RFAs. *Id.* And under Code of Civil Procedure Section 2023.030(a) (which Section 2033.280(c) expressly authorizes the Court to apply in this circumstance): “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney

³ As put by the Court of Appeal: “A party that fails to serve a timely response to the discovery request waives ‘any objection’ to the request, ‘including one based on privilege’ or the protection of the attorney work product.” *Sinaiko Healthcare Consulting, Inv. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 403.

advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be any doubt, the Court reads Section 2023.010(d) to mean that failing to *timely* "respond . . . to an authorized method of discovery" like RFAs is a "misuse of the discovery process" (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

III. Analysis of the Motion

Because these RFAs were served on Defendant on November 25, 2025, Defendant had the affirmative obligation to provide verified Code-Complaint responses to them by December 29, 2025. C.C.P. 2033.210-250. Based on its careful review of all the papers filed in connection with this Motion and the record, the Court finds that Defendant failed to serve verified Code-Complaint responses to these RFAs on Plaintiff by December 29, 2025. Hence, the Court finds that Defendant failed to serve timely a response to these RFAs.

On the issue of whether Defendant served a response to these RFAs that was substantially Code-Compliant after December 29, 2025 but before the date of this hearing on this Motion on August 28, 2026, the parties sharply disagree.

Defendant's attorney declares under oath that Defendant did serve verified responses to these RFAs by email on February 6, 2026. Mandal Decl. at ¶ 6 And indeed, Exhibit 6 to Plaintiff's Reply brief is a February 6, 2026 email from defense attorney Mandal to Plaintiff's counsel attaching responses to these RFAs. Supp. Gonzalez Decl., Ex. 6.

Plaintiff's attorney retorts that the February 6, 2026 service email is a "fabrication," pointing to a subsequent February 10, 2026 email from defense counsel asking for an extension to respond (Supp. Gonzalez Decl. at ¶ 5) and to metadata showing that the responses to the RFAs were "modified on August 19, 2026" (Supplemental Gonzalez Decl. at ¶ 15), the same date that defense counsel forwarded the February 6, 2026 service email to Plaintiff's counsel (as Plaintiff's counsel requested two days earlier). Supp. Gonzalez Decl. at ¶ 4.

After carefully reviewing all the evidence and arguments, Plaintiff has not convinced the Court that the February 6, 2026 service email attaching Defendant's responses to these RFAs is fake. Plaintiff's proffered evidence is inconclusive on this point, e.g., the metadata that the document was "modified" on August 19, 2026 might have been generated by counsel opening the document on August 19, 2026. So after reviewing all the evidence on this point, the Court, in the broad exercise of its discretion, finds for purposes of this Motion that Defendant did serve its verified responses to these

RFAs on February 6, 2026, which were in substantial compliance with Section 2033.220.⁴

In summary, the Court makes the following two factual findings for purposes of resolving this Motion:

- 1) Defendant failed to serve a timely response to these RFAs when it failed to serve a response to them by December 29, 2025.
- 2) After December 29, 2025, but before the date of this hearing on this Motion of August 28, 2026, Defendant did serve on February 6, 2026 a response to these RFAs that, while untimely, was verified and in substantial compliance with Section 2033.220.

By the plain text of Section 2033.280 by which Plaintiff brings this Motion, those two factual findings result in several rulings:

First Ruling: Regarding an order deeming the truth of all matters specified in the RFAs to be admitted, by the plain text of Section 2033.280(b) & (c) read together, because Defendant did on February 6, 2026 (before this August 28, 2026 hearing) serve a verified response to these RFAs that is substantially Code-Compliant, this Court **DENIES** Plaintiff's request for an Order deeming Defendant to have admitted the truth of any matters specified in this RFAs. In other words, the Court does *not* deem the truth of any matters specified in these RFAs to be admitted by Defendant. Hence, Defendant's substantive answers in these RFAs—e.g., “Deny”—in Defendant's February 6, 2026 Responses stand.

Second Ruling: Regarding Plaintiff's request for the Court to order that all objections in Defendant's responses have been waived, by the plain text of Section 2033.280(a), because Defendant here failed to serve a timely response to these RFAs, the Court now rules and **ORDERS** that all objections to these RFAs, including based on privilege or work product protection, made by Defendant in its untimely February 6, 2026 responses are hereby **WAIVED**.

While Defendant does satisfy the first statutory exception to Section 2033.280(a) by having subsequently served a response that is substantially Code-Complaint (*see* C.C.P. § 2033.280(a)(1)), Defendant has failed to establish that Defendant's failure to serve a timely response by December 29, 2025 was the result of mistake, inadvertence, or excusable neglect. And lest there be any doubt, the Court in the broad exercise of its discretion in reviewing all the papers in connection with this Motion and the records now finds that Defendant's failure to serve a timely response here was *not* the result of mistake inadvertence, or excusable neglect. Hence, all objections in its untimely February 6, 2026 responses are waived.

⁴ This finding is without prejudice in the sense that Plaintiff will be free at trial when cross-examining Defendant's witnesses to ask questions about whether this February 6, 2026 service email and its attached responses to these RFAs was fabricated or not..

And the practical effect of the First Ruling and Second Ruling is this: While the evidentiary objections in those responses are waived, Defendant's answers Denying matters involved in the RFA (or specifying so much of the matter as to the truth of which Defendant lacks sufficient information or knowledge) in its February 6, 2026 responses remain in full force.

Third Ruling: Regarding sanctions, by the plain text of Section 2033.280(c) regarding sanctions, because the Court finds that Defendant's failure to serve a timely response to the RFAs necessitated this Motion, it is mandatory for the Court to impose a reasonable monetary sanction on Defendant here. Specifically, for Plaintiff's misuse of the discovery process under Section 2023.010(d) by failing to serve a timely response to these RFAs by December 29, 2025, Plaintiff moves here for a monetary sanction against Defendant F.S. Trucking Company, Inc., of \$2,000.00 under Sections 2023.030 for Plaintiff's reasonable attorneys' fees and costs for bringing this Motion. C.C.P. § 2023.030.

Plaintiff's request in this Motion for a \$2,000.00 sanction is well supported by the attorney hourly rates and number of attorney hours spent on this Motion, which are well detailed in the Gonzalez Declaration at ¶¶12, 13, and 14, and which the Court in the broad exercise of its discretion now finds are reasonable in all respects.⁵ So Defendant F.S. Trucking Company, Inc., is **ORDERED** to pay Plaintiff \$2,000.00 as a sanction within 30 days from today.

IV. Conclusion & Order

Accordingly, based on the factual findings and for the reasons explained above, the Court **GRANTS IN PART and DENIES IN PART Plaintiff's Motion**. Specifically, it is hereby **ORDERED** that:

- 1. The Court DENIES the Motion's request for an Order that the truth of all matters specified in these RFAs are deemed admitted. Defendant's substantive answers (e.g., "Deny") to these RFAs as set forth in its untimely responses served on February 6, 2026 stand.**
- 2. The Court GRANTS the Motion's request that all Defendant's objections to these RFAs, including based on privilege or work product protection, as set forth in its untimely responses served on**

⁵ Specifically, the Gonzalez Declaration establishes that Plaintiff as of the filing of the Motion spent 5.75 hours of attorney time at an hourly rate of \$450.00, plus a filing fee for this Motion of \$60.00, for total fees and costs of \$2,647.50. Gonzalez Decl. at ¶¶12-14. While Plaintiff's total fees and costs for this Motion are \$2,647.50, Plaintiff seeks only \$2,000.00 as a sanction here. In the exercise of its discretion, the Court finds the hourly rate \$450.00 sought is reasonable in light of the relevant market, the number of hours sought is reasonable in light of the work spent on this Motion, and the total amount sought of \$2,000.00 is reasonable.

February 6, 2026, are WAIVED.

And

- 3. The Court GRANTS the Motion's request for sanctions. Within 30 days from today, Defendant F.S. Trucking Company, Inc., will pay \$2,000.00 to Plaintiff Shaun Allen Laliberte as a monetary sanction for Plaintiff's reasonable attorneys' fees incurred for this Motion.**

Moreover, Defendant F.S. Trucking Company, Inc., is put on **NOTICE** that failure to comply with this Order in all respects within 30 days from today may subject Defendant F.S. Trucking Company, Inc., to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.⁶

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁶ Moreover, regardless of whether any party contests this ruling, counsel for all parties in this case are **ORDERED TO APPEAR IN PERSON** at this August 26, 2026 hearing to discuss with the Court how from this point forward in this case they all *will* follow the provisions of Santa Clara County Bar Association ("SCCBA") Code of Professionalism, including but not limited to on Discovery (Section 10) and Motion Practice (Section 11) or else they *and* their clients will experience an array of sanctions imposed by the Undersigned Judge. *See* Standing Order of Santa Clara County Superior Court Re SCCBA Code of Professionalism (filed: March 28, 2023) (authorizing Judges to apply this Code of Professionalism to adjudicate discovery disputes). Lest there be the slightest doubt in their minds, their compliance with the SCCBA Code of Professionalism when practicing in this Department 16 is not aspirational but mandatory.

Line 6

Case Name: *Wells Fargo Bank, N.A. v. Yvonne Trigos*

Case No.: 25CV465609

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 2033.280(b) to deem Plaintiff’s Requests for Admission, Set One (the “RFAs”) admitted by Defendant Yvonne Trigos (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed: Jan. 23, 2026).

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on November 12, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite her obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:4-7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on November 12, 2025, is deemed admitted by Defendant Yvonne Trigos.**

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Lal Rai v. Ford Motor Company, et al.*

Case No.: 25CV477349

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Hoblit Motors Ford (“Hoblit Motors”) moves under the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) and Code of Civil Procedure Section 1281.4 to compel arbitration and to stay this civil action pending completion of that arbitration. Notice of Motion (the “Motion”) at 1:3-2:3 (filed: Jan. 28, 2026).

The Motion came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background Facts & Procedural Posture

Plaintiff Lal D. Rai (Plaintiff) purchased a 2024 Ford F-150 (Subject Vehicle) in October 2024 from Hoblit Motors Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

Legal Standards on Motion to Compel Arbitration

Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p. 6:18-21.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 *et seq.*) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A at p. 5.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.”

(*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

Analysis of the Motion

1. There is a Valid Agreement to Arbitrate between these parties here.

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 5.)

In this case, Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to

resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1.) The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6.) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”].)

Plaintiff argues that Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:6-4:7.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

2. The Scope of the Arbitration Agreement Covers Plaintiff’s Claims.

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A at p. 5.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:7-9.) But that opinion is easily distinguished here. *Ford Motor Warranty Cases* involved an attempt by an automobile *manufacturer* to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) In stark contrast, here the entity petitioning to compel arbitration is a party to the

contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff's claims.

The Court need not and does not reach Dealership's arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership's arguments on those points.

3. This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective." (Reply at p. 8:26-28.) Plaintiff has not offered any arguments opposing a stay to the entire action. Moreover, a stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3.

Accordingly, the court **STAYS** this action in its entirety pending the outcome of this arbitration.

Conclusion & Order

Defendant Hoblit Motors Ford's Motion to compel arbitration is **GRANTED** in all respects. And the entire action is **STAYED** pending the outcome of this arbitration.

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 8

Case Name: *City of Santa Clara v. Bogard Construction, Inc., et al.*

Case No.: 23CV424421

See Order above. (At the request of the moving party, this Motion is **OFF CALENDER.**)

Line 9

Case Name: *Santos Medina v. SF Green Construction Inc., et al.*

Case No.: 24CV453662

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Santos Medina (“Plaintiff”) moves to vacate the June 26, 2025 Order compelling arbitration of the claims against Defendant Solar Mosaic LLC (“Mosaic” or “Defendant”).⁷ Notice of Motion (the “Motion to Vacate”) at 1:24-26 (filed: Jan. 16, 2026). The Motion is made on the grounds: that Plaintiff has discovered new facts that are the basis of new allegations, a new cause of action, and a prayer for new remedies; that Plaintiff has filed a Motion for Leave to file a First Amended Complaint; that Solar Mosaic LLC’s arbitration provision unlawfully prohibits public injunctive relief pursuant to the Consumer Legal Remedies Act and the Unfair Competition Law; that the arbitration provision in whole is expressly null and void due to the unlawful terms. *Id.* at 1:27-2:6.

The Motion to Vacate came on for hearing on August 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Plaintiff filed the Complaint in this civil action on December 10, 2024, arising from the installation of a solar system on his home that was financed through his loan agreement with Mosaic (the “Loan Agreement”). On January 13, 2025, Mosaic moved to compel arbitration under the arbitration provision in the Loan Agreement and Plaintiff filed his Opposition to the motion to compel arbitration on February 6, 2025.

In its Order signed and dated on June 25, 2025, the Court granted Mosaic’s Motion to compel arbitration and ordered that this dispute be resolved in binding arbitration, and that “the action, including any discovery and motions, against Defendant Solar Mosaic LLC only is stayed pending completion of the arbitration[.]” Order at 2:15-18. The Clerk

⁷ While Plaintiff’s Motion occasionally refers to a “June 4, 2025” Order, the record shows that the hearing on Mosaic’s motion to compel arbitration was held on June 4, 2025; the Order granting the motion to compel arbitration was signed and dated by the Court on June 25, 2025; and the Clerk of the Court entered this Order on the case docket *and* served written notice of entry of this Order on the parties on June 26, 2025. For clarity of the record, the Court will hereinafter refer to this Order as the “June 26, 2025 Order.”

of the Court filed this Order on the case docket and gave notice of the Court's Order to all parties via mail on June 26, 2025, as evidence in the Clerk of the Court's Poof of Service.⁸

On January 16, 2026, Plaintiff filed this Motion to Vacate the June 26, 2025 Order, invoking Code of Civil Procedure Section 1008. The Motion is accompanied by Plaintiff's counsel's declaration asserting that, since the date of the Court's June 26, 2025 Order, he became aware of allegations raised against Mosaic in an unrelated litigation filed by the Attorney General of the State of Minnesota (the "Minnesota Action"). The Motion to vacate asserts a new theory of the case arising from facts Plaintiff takes from the Minnesota Action, and a new legal theory in opposition to Mosaic's January 13, 2025 motion to compel arbitration.

The Minnesota Action was filed on March 8, 2024⁹—almost one year before Plaintiff filed its Opposition on February 6, 2025, to Mosaic's motion to compel arbitration (and indeed almost nine months before Plaintiff filed its Complaint in this case on December 10, 2024).

The Court, in the broad exercise of its discretion, finds that any fact allegations in the Complaint filed on March 8, 2024 in the Minnesota Action were not new facts that Plaintiff's counsel could not, with reasonable diligence, have discovered and argued in its February 6, 2025 opposition papers to the motion to compel arbitration almost a year later.

Moreover, as explained in footnote 1 above, the Court finds that the Clerk of the Court served Plaintiff with written notice of the entry of the Court's Order compelling arbitration on June 26, 2025. Hence, for purposes of Code of Civil Procedure Section 1008(a), the ten-day period for Plaintiff to file a motion for reconsideration ran from that service of written notice of entry of that Order on June 26, 2025, not from the June 4, 2025 hearing date. So, for clarity of the record, the operative date triggering the ten-day deadline is June 26, 2025, the date the Clerk served written notice of entry.

II. Analysis of the Motion to Vacate

A. The Motion to Vacate is untimely and barred by Section 1008.

Applications for reconsideration of a trial court's order are governing by Code of Civil Procedure Section 1008. Compliance with Section 1008 is jurisdictional: "No application to reconsideration any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section." C.C.P. § 1008(e).

The plain text of Section 1008(a) states that "any party affected" by an order "may,

⁸ Again, for clarity of the record, the Court refers to this Order that is the subject of this Motion to Vacate as the "June 26, 2025 Order."

⁹ See Complaint, *Minnesota v. Goodleap LLC et al.*, No. 27-CV-3558 (Fourth Jud. Dist. Ct. March 8, 2024).

within 10 days after service upon the party of written notice of entry of the order *and* based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter an modify, amend, or revoke the prior order.” C.C.P. § 1008(a) (emphasis added). The requirements of Section 1008(a) are stated in the conjunctive—“and”—meaning that unless all those requirements are satisfied, relief under Section 1008(a) is unavailable.

Here, while Plaintiff is a party “affected” by the June 26, 2025 Order, he fails to satisfy an express requirement of Section 1008(a) that this motion be filed “within 10 days after service upon the party of written notice of entry of the order.” C.C.P. § 1008(a). While Plaintiff was served with written notice of entry of the Order compelling arbitration on June 26, 2025, he did not file this Motion until more than six months later on January 16, 2026. Hence, this Motion that Plaintiff brings under Section 1008 is time-barred by the plain text of Section 1008(a)—and that bar is jurisdictional under Section 1008(e). C.C.P. §§ 1008(a) & (e).

Nor does any other subdivision of Section 1008 authorize Plaintiff’s Motion to Vacate.

Plaintiff is not the “party who originally made an application for [the June 26, 2025] Order,” so subdivision (b) does not authorize Plaintiff’s Motion. C.C.P. § 1008(b).

Nor is Plaintiff “a court,” so subdivision (c) does not authorize Plaintiff’s Motion either. C.C.P. § 1008(c). While subdivision (c) expressly preserves the court’s authority to reconsider on its *own* motion when there has been a change of law (*id.*), that provision does not create a party-triggered procedural mechanism that bypasses the express ten-day deadline imposed by subdivision (a).¹⁰

Plaintiff’s reliance on *Le Francois v. Goel* (2005) 35 Cal. 4th 1094 does not save his Motion. While *Le Francois* recognized that an order compelling arbitration is interlocutory and that the court retains *inherent* authority to revisit such interim orders, that inherent authority belongs to the court acting on its own motion, *not* to a party like Plaintiff filing an untimely written motion. *Le Francois* made crystal clear that “a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section . . . 1008.” *Id.* at 1097. Here, Plaintiff has not satisfied the requirements of Section 1008 because Plaintiff filed this Motion more than six months after the 10-day deadline of Section 1008(a) expired.

Hence, by the very authority that Plaintiff invokes, the Motion is time barred and

¹⁰ Likewise, Plaintiff’s argument that he is entitled to reconsideration of the June 26, 2025 Order “on the grounds . . . that Plaintiff has filed a Motion for Leave to file a First Amended Complaint” (Motion at 1:27-2:2) is completely untethered and unmoored from the statutory text of Section 1008. No subdivision of Section 1008 authorizes a Court to reconsider or vacate an Order simply because a party believes it later develops a stronger pleading theory and seeks leave to amend a pleading.

jurisdictionally barred. *Le Francois v. Goel*, 35 Cal. 4th at 1097; C.C.P. § 1008(a) & (e).

So on this ground, the Motion to Vacate is **DENIED**.

B. Plaintiff offers no good explanation why he did not argue in his *February 2025* Opposition to the motion to compel arbitration facts that he now wants to inject from a Complaint in another case filed almost a year earlier in *March 2024*.

To satisfy Section 1008:

The party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time. In short, the moving party's burden is the same as that of a party seeking new trial on the ground of 'newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.'

Baldwin v. Home Sav. of Am. (1997) 59 Cal. App. 4th 1192, 1198.

Here, Plaintiff argues that he is entitled to reconsideration because his counsel "became aware of allegations made by the Minnesota Attorney General" against Mosaic. Declaration of David Valdez Jr. ("Valdez Decl.") at ¶ 2.

But as those fact allegations are set forth in the Complaint in the Minnesota Action filed on March 8, 2024, they are not new facts that Plaintiff's counsel could not, with reasonable diligence, have discovered and argued in its February 6, 2025 papers opposing Mosaic's motion to compel arbitration almost a year later. Nor does Plaintiff offer (let alone carry his burden to establish) a satisfactory explanation about why he didn't argue those March 2024 facts in Plaintiff's February 2025 opposition papers.

Hence, for this independent reason, Plaintiff fails to satisfy Section 1008. And his failure to satisfy Section 1008 dooms this Motion that is brought under Section 1008.

So on this ground, the Motion to Vacate is **DENIED**.

C. Plaintiff offers no good explanation why he did not argue in his *February 2025* Opposition to the motion to compel arbitration law that he now wants to argue from the *McGill v. Citibank* case decided eight years earlier in *February 2017*.

Plaintiff also moves for reconsideration of the June 26, 2025 Order compelling arbitration because he wants to argue now that under *McGill v. Citibank, N.A.* (2017) 2 Cal. 5th 945 that the arbitration provision here contains an unenforceable pre-dispute contractual waiver of the right to seek public injunctive relief. Motion to Vacate at 9:5-17 (citing and arguing *McGill*).

The same timeliness and jurisdiction bars under Sections 1008(a) & (e) discussed above doom Plaintiff's Motion based on its *McGill* argument for reconsideration now.

McGill was decided on February 27, 2017.

The plain text of Section 1008(a) requires a showing by Plaintiff of “new or different facts, circumstances, *or law*[.]” C.C.P. § 1008(a) (emphasis added).

Case law like *McGill* decided eight years before the order sought to be reconsidered does not qualify as new or different law under section 1008.

Ignorance of the law, belated legal research, or legal arguments that could and should have been raised Plaintiff's February 2025 Opposition to Mosaic's motion to compel arbitration cannot and do not satisfy this plain statutory requirement of Section 1008(a).

A party like Plaintiff seeking reconsideration based on a legal theory must show either that the legal authority is genuinely new—decided after the order being challenged—or that some new circumstance makes a pre-existing legal rule newly applicable. As Plaintiff makes no such showing here, this Motion fails to meet this requirement of Section 1008(a). As it fails to meet this requirement of Section 1008(a)—and fails to satisfy any other subdivision of Section 1008—this Motion is barred under Section 1008(e).

In sum, the 2017 *McGill* case is not new law for purposes of the motion to compel arbitration litigated in early 2025 and decided in the June 26, 2025 Order compelling arbitration that Plaintiff now seeks to vacate under Section 1008. Plaintiff has failed to carry his burden of giving a satisfactory explanation for why *McGill* was not raised in his opposition to the motion to compel arbitration filed on February 6, 2025 if counsel believed it applied.

So on this ground of *McGill*-based invalidity of the arbitration clause, the Motion to Vacate is **DENIED**.

III. Conclusion & Order

For all the reasons discussed above, Plaintiff's Motion to Vacate is **DENIED** on all grounds.¹¹

¹¹ The Court is aware that Mosaic has filed a separate motion for sanctions under Code of Civil Procedure Section 128.7 against Plaintiff for bringing this Motion to Vacate. As Mosaic's motion for sanctions is noticed for hearing on May 19, 2027, and that hearing date has yet arrived, the Court declines to reach the merits on the motion for sanctions today. The sanctions motion will be addressed in due course, and all parties will have the fair opportunity to be heard, at the noticed hearing on May 17, 2027. Any opposition, reply, and evidentiary showing concerning safe-harbor compliance, objective frivolousness, and the other elements of section 128.7 liability should be

SO ORDERED.

Date: August 26, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

presented at the May 17, 2027 hearing. The Court's ruling today on Plaintiff's Motion to Vacate does not constitute an advance ruling on the sanctions motion, and the Court expresses no view at this time on whether sanctions are warranted under Section 128.7.

Line 10

Line 11

Line 12

Line 13

Line 14

Line 15